

26STCP00233 26STCP00233

County: los-angeles

Division: Civil Law and Motion

Department: 617

Hearing date: 2026-09-15

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Case Number: 26STCP00233 Hearing Date: September 15, 2026 Dept: 617

Dept.

617

Date:

9-15-26

Case

#: 26STCP00233

Trial

Date: None Set

RELEASE OF DIGITAL ASSETS

MOVING

PARTY: Petitioner, Maria I. Candelas

RESPONDING

PARTY: Unopposed/Respondent, Apple, Inc.

RELIEF

REQUESTED

Petition

for Order Authorizing Release of Digital Assets

SUMMARY

OF ACTION

Petitioner

Maria I. Candelas, in pro per, seeks an order directing Respondent Apple, Inc. to provide copies of digital content from accounts associated with her deceased daughter's Apple ID.

RULING: Denied without prejudice.

The

petition is denied without prejudice because it was not properly served on Apple. The proof of service indicates that the petition was served via mail to Apple's legal department in California. However, the legal department is not a "person" that can be served on behalf of Apple. (Code Civ. Proc., § 416.10.) Furthermore, the proof of service does not indicate that 2 copies of the notice and acknowledgement form and "a return envelope, postage prepaid, addressed to the sender" were mailed to Apple or that Apple signed and returned a copy of the acknowledgement form. (Id. § 415.30.) The petition is therefore denied without prejudice and Plaintiff may refile the petition with proper service on Apple.

Petitioner
to give notice.